

Air Pollution Control (Furnaces, Ovens and Chimneys) (Installation and Alteration) Regulations

(Cap. 311 sub. leg. A)

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Air Pollution Control (Furnaces, Ovens and Chimneys) (Installation and Alteration) Regulations

(Cap. 311, section 43)

[15 December 1972]

(Format changes—E.R. 5 of 2022)

Editorial Note:

These regulations were made under the repealed Clean Air Ordinance and, by virtue of section 36(1) of the Interpretation and General Clauses Ordinance (Cap. 1), continue to have the like effect as if they had been made under the present Air Pollution Control Ordinance (Cap. 311).

1. Citation

These regulations may be cited as the Air Pollution Control (Furnaces, Ovens and Chimneys) (Installation and Alteration) Regulations.

(17 of 1983 s. 50)

2. Interpretation

In these regulations, unless the context otherwise requires—

authorized person (認可人士) means a person whose name is for the time being on the authorized persons' register kept under section 3(1) of the Buildings Ordinance (Cap. 123)— *(L.N. 261 of 1987)*

- (a) as an architect therein; or
- (b) as an engineer therein; or
- (c) as a surveyor therein; *(54 of 1996 s. 28)*

occupier (佔用人) means—

- (a) the occupier of premises on which a furnace, oven, chimney or flue is to be installed, altered or modified; and
- (b) the person having the management or control or receiving the profits of the business carried on in such premises;

qualified engineer (合資格工程師) means a registered professional engineer in the building services, gas, chemical, marine or mechanical engineering disciplines under the Engineers Registration Ordinance (Cap. 409); (*L.N. 310 of 1993*)

specifications (規格) in relation to a furnace, oven, chimney or flue means the specifications prescribed under regulation 7.

(*L.N. 36 of 1975; L.N. 202 of 1979*)

3. Application

- (1) These regulations shall not apply to premises on which any work is intended to be carried out in relation to the installation, alteration or modification of—
 - (a) a furnace or oven, or a chimney or flue connected thereto, which consumes not more than—
 - (i) 25 litres of conventional liquid fuel per hour; or
 - (ii) 35 kilograms of conventional solid fuel per hour; or
 - (iii) 1 150 megajoules of any gaseous fuel per hour;
 - (b) a furnace or oven which is operated solely by electricity; or
 - (c) a furnace, oven, chimney or flue used for the conduct of a specified process upon any premises where—

- (i) the conduct of that specified process is licensed under the Ordinance; or
- (ii) the owner of such premises is exempt from the operation of section 13 of the Ordinance by reason of the application of section 20 of the Ordinance in relation to that specified process. (*L.N. 261 of 1987*)

(1A) (*Repealed L.N. 423 of 1990*)

(2) In this regulation—

conventional liquid fuel (常規液體燃料) means kerosene, diesel oil, petroleum and any equivalent liquid fuel;

conventional solid fuel (常規固體燃料) means coal, coke, charcoal, wood and any equivalent solid fuel.

4. Submission of plans for approval by Authority

- (1) The occupier of any premises on which work is intended to be carried out in relation to— (*L.N. 261 of 1987*)
 - (a) the installation on the premises of a furnace, oven, chimney or flue;
 - (b) the alteration or modification of a furnace, oven or chimney existing on the premises; or
 - (c) the alteration or modification of a flue between a furnace and chimney or between an oven and chimney existing on the premises,

shall, not less than 28 days prior to the commencement of such work, submit to the Authority for his approval plans showing the elevations and plan views of the furnace, oven, chimney or flue which is to be installed, altered or modified, together with specifications of the same. (*L.N. 202 of 1979; 17 of 1983 s. 50*)

- (2) Any plans and specifications submitted to the Authority in pursuance of an application under section 14, 16, 18 or 23 of the Ordinance shall be deemed to have been submitted also for the purposes of paragraph (1) if those plans and specifications include the plans and specifications of any furnace, oven, chimney or flue. *(L.N. 261 of 1987)*

5. Power of Authority to require additional plan

The Authority may, if he considers it necessary, require the occupier to submit for his approval, in addition to the plans required by regulation 4, a block plan showing the buildings surrounding the premises and may specify the period within which such block plan shall be submitted to him.

(L.N. 202 of 1979; 17 of 1983 s. 50)

6. Plans to be prepared by authorized person or qualified engineer and to scale

A plan submitted under regulation 4 or 5 to the Authority for approval shall be—

- (a) if it is a block plan—
 - (i) prepared by an authorized person; and
 - (ii) drawn to a scale of not less than 1:500; and
- (b) if it is a plan showing elevations or plan views—
 - (i) prepared by either an authorized person or a qualified engineer; and
 - (ii) drawn to a scale of not less than 1:100.

(L.N. 202 of 1979; 17 of 1983 s. 50; L.N. 261 of 1987)

7. Specifications

- (1) Specifications in respect of a furnace, oven, chimney or flue

submitted to the Authority for approval shall include the following— (*L.N. 202 of 1979; 17 of 1983 s. 50*)

- (a) the type, grade and quantity (including the estimated maximum and average quantity according to the manufacturer's published ratings) of fuel to be consumed—
 - (i) if a furnace or oven is to be installed, altered or modified, in that furnace or oven and in any other furnace or oven connected to the same common chimney or flue as that furnace or oven; and
 - (ii) if a chimney or flue is to be installed, altered or modified, in the furnace or oven connected to that chimney or flue;
- (b) the number of hours in each period of 24 hours during which the furnace, oven, chimney or flue to be installed, altered or modified will be operated;
- (c) details of any automatic or semi-automatic control connected to the furnace, oven, chimney or flue to be installed, altered or modified;
- (d) details of any control on the quantity of fuel consumed in and air admitted to the furnace or oven to be installed, altered or modified;
- (e) if the furnace or oven to be installed, altered or modified is attached to a boiler for the purpose of raising steam or heating water, the manufacturer's published rating of the boiler;
- (f) structural details which shall include the height, the cross sectional area at the top and the material of construction of any chimney, whether to be installed or existing on the premises, through which the products

- of combustion from the furnace or oven to be installed, altered or modified may be conveyed to the atmosphere;
- (g) if the fuel to be consumed in the furnace or oven to be installed, altered or modified is a solid fuel, full details of any mechanical stoking device connected thereto; and
 - (h) if the fuel, to be consumed in the furnace or oven to be installed, altered or modified is a liquid or gaseous fuel, full details of the burner appliance which is to be fitted to that furnace or oven and to any existing furnace or oven using the same common chimney or flue.
- (2) The Authority may, if he considers it necessary, require the occupier to submit for his approval further details in respect of specifications specified in paragraph (1) and may specify the period within which the details shall be submitted to him. (*L.N. 202 of 1979; 17 of 1983 s. 50*)
- (3) Specifications specified—
- (a) in paragraph (1)(a), (b), (c), (d), (e), (g) and (h) shall be prepared by a qualified engineer; and (*E.R. 5 of 2022*)
 - (b) in paragraph (1)(f) shall be prepared by an authorized person. (*L.N. 261 of 1987*)

8. Refusal of approval of plan

- (1) The Authority may refuse to give his approval to any plans and specifications submitted to him under regulation 4, 5 or 7 if he is not satisfied that the furnace, oven, chimney or flue in respect of which such plans and specifications are submitted, can be operated—
- (a) without contravening the Ordinance;
 - (b) without causing or contributing to the existence or imminence of air pollution; or (*L.N. 310 of 1993*)

- (c) without emitting air pollutant by reason of— (*L.N. 310 of 1993*)
 - (i) unsuitable design, defective construction or maintenance;
 - (ii) excessive wear and tear;
 - (iii) the use of unsuitable fuel or other material; or
 - (iv) improper operation. (*L.N. 310 of 1993*)
- (2) If the Authority refuses to give his approval under paragraph (1), he shall by notice in writing signify his refusal and the reasons therefor to the occupier who submitted the plans and specifications.

(L.N. 202 of 1979; 17 of 1983 s. 50)

9. Approval deemed given if refusal not notified

- (1) If any plans and specifications are submitted to the Authority for his approval under regulation 4, 5 or 7 approval shall be deemed to have been given unless he has signified his refusal to give his approval under regulation 8(2) within 28 days from the time of submission of the plans and specifications. (*L.N. 202 of 1979; 17 of 1983 s. 50; L.N. 261 of 1987*)
- (2) Nothing in this regulation shall apply to an application which is deemed by regulation 4(2) to have been submitted for the purposes of regulation 4(1). (*L.N. 261 of 1987*)

10. Certificate of approval

If the Authority gives his approval to any plans and specifications submitted to him, he shall issue a certificate of approval in the form prescribed in the Schedule, to the occupier who has submitted the same.

(L.N. 202 of 1979; 17 of 1983 s. 50)

11. Prohibition of carrying out work without approval

No occupier shall carry out or cause or permit to be carried out any work in relation to installation, alteration or modification of any furnace, oven, chimney or flue on his premises unless approval in respect of all the plans and specifications of the same is obtained in accordance with these regulations.

12. Offences and penalties

- (1) An occupier who contravenes regulation 11 shall be guilty of an offence and shall be liable on conviction to a fine at level 5 and, in addition, shall be liable to a fine of \$500 for each day during which the offence has continued. (*L.N. 310 of 1993; E.R. 5 of 2022*)
- (2) If in any proceedings in respect of a contravention of regulation 11 the court is satisfied that the defendant committed the contravention, it may, either of its own volition or on the application of the Authority, in addition to or instead of imposing a fine, make an order—
 - (a) prohibiting the defendant from operating the furnace, oven, chimney, or flue involved in the contravention from such date as may be specified in the order; or
 - (b) requiring him, within such period as may be specified in the order, to dismantle or remove the furnace, oven, chimney, or flue; or
 - (c) requiring him to submit to the Authority, within 28 days after the making of the order, such plans and specifications as would have been required under regulation 4 if the contravention had not taken place. (*L.N. 36 of 1975; L.N. 202 of 1979; 17 of 1983 s. 50*)

- (3) If the court makes an order under paragraph (2)(b) or (c) it shall adjourn the proceedings for such period as it thinks necessary to enable the order to be complied with, in which case it may defer its decision as to whether or not to impose a penalty in respect of the contravention until the proceedings are resumed. (*L.N. 36 of 1975*)
- (4) The period for complying with an order under paragraph (2)(b) or (c) may be extended by the court on the application of the defendant made before or after the expiration of that period. (*L.N. 36 of 1975*)
- (5) Any defendant who, without reasonable excuse, fails to comply—
 - (a) with an order under paragraph (2)(a); or
 - (b) with an order under paragraph (2)(b) within the period specified in the order or within such extended period as the court may have allowed under paragraph (4),shall, in addition to being guilty of an offence against paragraph (1), be guilty of a further offence and shall be liable on conviction to a fine at level 3 and to an additional fine of \$500 for each day during which the offence has continued. (*L.N. 36 of 1975; L.N. 310 of 1993; E.R. 5 of 2022*)
- (6) Where an order is made under paragraph (2)(c), the defendant shall submit to the Authority for his approval within 28 days after the making of the order the plans and specifications referred to in paragraph (2)(c). (*L.N. 36 of 1975; L.N. 202 of 1979; 17 of 1983 s. 50*)

- (7) Where the defendant has submitted plans and specifications to the Authority in accordance with paragraph (6), the provisions of regulations 5 to 10, shall apply, with any necessary modifications, as if the plans and specifications had been submitted under regulation 4 and the installation, alteration or modification had not yet been carried out. (*L.N. 36 of 1975; 17 of 1983 s. 50*)
- (8) If the defendant—
- (a) fails to comply with an order made under paragraph (2)(c) within 28 days after the making of the order or such further period as the court may have allowed under paragraph (4); or
 - (b) has complied with the order but the Authority has notified the defendant that he has refused to approve the plans and specifications submitted to him,
- the court may, on the application of the Authority, make an order against the defendant under paragraph (2)(a) or (b). (*L.N. 36 of 1975; L.N. 202 of 1979; 17 of 1983 s. 50*)
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Air Pollution Control (Furnaces, Ovens and Chimneys) (Installation and Alteration)
Regulations

Schedule

S-2

Cap. 311A

Schedule

[reg. 10]

Form of Certificate of Approval

AIR POLLUTION CONTROL (FURNACES, OVENS AND CHIMNEYS)
(INSTALLATION AND ALTERATION) REGULATIONS

Certificate of Approval issued under regulation 10

Date

To occupier

of the premises at

I hereby certify that approval has been given in respect of the plans (reference Nos.) and the specifications submitted by you for approval on in accordance with regulations *4, 5 and 7 of the Air Pollution Control (Furnaces, Ovens and Chimneys) (Installation and Alteration) Regulations for the *installation/alteration/modification of a *furnace/oven/chimney/flue at the above-mentioned premises.

.....
Authority

* Delete whichever is not applicable.

Air Pollution Control (Furnaces, Ovens and Chimneys) (Installation and Alteration)
Regulations

Schedule

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Cap. 311A

Note: This certificate of approval may be required for inspection by the Authority or an authorized officer and should be kept in a safe place at the above-mentioned premises.

(L.N. 202 of 1979; L.N. 212 of 1996)